IN THE ISLAMABAD HIGH COURT, ISLAMABAD
Present:
* Hon'ble Mr. Justice Shahid Waheed
* Hon'ble Mr. Justice Musarrat Hilali

Civil Appeal No. 43 of 2019
Citation: PLD 2019 Lah 504
Matter ID: MAT-CORP-2019-147

BETWEEN:
Lucky Cement Corporation ... Appellant / Petitioner
VERSUS
M/s Crescent Textile Mills Ltd. ... Respondent

LEGAL TOPIC: Corporate - Winding Up & Insolvency
STATUTES CITED: Companies Act 2017, S. 301, Banking Companies Ordinance 1962, S. 40

JUDGMENT
1. This judgment disposes of Civil Appeal No. 43 of 2019, directed against the final judgment r endered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Companies Act 2017, S. 301 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting tha t full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Companies Act 2017, S. 301 and guaranteed f undamental rights, this petition is allowed. The impugned judgment is set aside and matter is r emanded for decision afresh on merits.

Decided on: 15 October 2019.